

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shadman Khan	Team: Squad #12	CCRB Case #: 202206667	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 08/11/2022 7:30 AM, Wednesday, 10/05/2022 8:55 AM	Location of Incident: § 87(2)(b) in Brooklyn	18 Mo. SOL 2/11/2024	Precinct: 73		
Date/Time CV Reported Wed, 10/05/2022 9:10 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/05/2022 9:10 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Eric Ortiz	05503	942297	WARRSEC
2. DT3 Sean Nurse	05897	928878	WARRSEC
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Brian Tiernan	05421	933411	WARRSEC
2. DT3 Douglas Connolly	07786	954665	WARRSEC
3. DT3 Ryan Olsen	05992	949417	WARRSEC
4. DT3 Joseph Solomito	03590	952258	WARRSEC
5. DT3 Bryant Villegas	07879	954406	WARRSEC

Officer(s)	Allegation	Inv. Div. Recommendation
A . DT3 Eric Ortiz	Abuse: On August 11, 2022, at § 87(2)(b) in Brooklyn, Detective Eric Ortiz entered § 87(2)(b)	A . Substantiated
B . DT3 Eric Ortiz	Abuse: On August 11, 2022, at § 87(2)(b) in Brooklyn, Detective Eric Ortiz searched § 87(2)(b)	B . Substantiated
C . An officer	Off. Language: On August 11, 2022, an officer made remarks to § 87(2)(b) based upon race.	C . Officer(s) Unidentified
D . An officer	Discourtesy: On August 11, 2022, an officer spoke discourteously to § 87(2)(b)	D . Officer(s) Unidentified
E . An officer	Off. Language: On August 11, 2022, an officer made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	E . Officer(s) Unidentified
F . DT3 Eric Ortiz	Abuse: On October 5, 2022, Detective Eric Ortiz damaged § 87(2)(b) property.	F . Unable to Determine
G . DT3 Eric Ortiz	Abuse: On October 5, 2022, Detective Eric Ortiz threatened to notify Administration for Children's Services.	G . Unable to Determine
H . DT3 Eric Ortiz	Abuse: On October 05, 2022, at § 87(2)(b) in Brooklyn, Detective Eric Ortiz entered § 87(2)(b)	H . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
I . DT3 Eric Ortiz	Abuse: On October 05, 2022, at § 87(2)(b) in Brooklyn, Detective Eric Ortiz searched § 87(2)(b)	I . Substantiated
J . DT3 Sean Nurse	Abuse: On October 5, 2022, Detective Sean Nurse drew his gun.	J . Unable to Determine
K . An officer	Abuse: On October 5, 2022, an officer drew their gun.	K . Officer(s) Unidentified
L . An officer	Off. Language: On October 5, 2022, an officer made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	L . Officer(s) Unidentified
M . An officer	Discourtesy: On October 5, 2022, an officer spoke discourteously to § 87(2)(b)	M . Officer(s) Unidentified

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on October 5, 2022.

On August 11, 2022, at approximately 7:30 AM, Sgt. Brian Tiernan, Det. Eric Ortiz, Det. Bryant Villegas, and Det. Joseph Solomito of the Brooklyn North Warrants Section conducted an apprehension attempt for two wanted individuals at § 87(2)(b) in Brooklyn. Led by Det. Ortiz, the officers entered and searched the premises (**Allegations A and B: Abuse of Authority, Substantiated**). When officers were leaving the location after the search, an officer allegedly said to § 87(2)(b) “Shut up, you black bitch” (**Allegations C and E: Offensive Language, Officer Unidentified; Allegation D: Discourtesy, Officer Unidentified**). § 87(2)(b) was not arrested or summonsed in connection with this incident.

On October 5, 2022, at approximately 8:55 AM, Det. Ortiz, Det. Douglas Connolly, Det. Sean Nurse, and Det. Ryan Olsen of the Brooklyn North Warrants Section made second apprehension attempt at § 87(2)(b) in Brooklyn. Det. Ortiz allegedly kicked the front door, damaging it (**Allegation F: Abuse of Authority, Unable to Determine**). Det. Ortiz spoke to § 87(2)(b) ten-year-old son, § 87(2)(b) through the closed door and allegedly threatened to contact the Administration for Children’s Services (**Allegation G: Abuse of Authority, Unable to Determine**). Det. Ortiz and other officers entered the apartment and searched the apartment (**Allegations H and I: Abuse of Authority, Substantiated**). While searching a bedroom, Det. Nurse and an unidentified officer allegedly drew their firearms (**Allegation J: Abuse of Authority, Unable to Determine; Allegation K: Abuse of Authority, Officer Unidentified**). When leaving the apartment, an officer allegedly referred to § 87(2)(b) as a “bitch” (**Allegation L: Offensive Language, Officer Unidentified; Allegation M: Discourtesy, Officer Unidentified**). § 87(2)(b) was not arrested or summonsed in connection with this incident.

The investigation received negative results for body worn camera videos associated with either incident (Board Review 01). § 87(2)(b) provided cellphone video footage capturing a portion of the October 5, 2022, incident (Board Review 03), summarized in IA #24.

Findings and Recommendations

Allegation (A) Abuse of Authority: On August 11, 2022, Detective Eric Ortiz entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: On August 11, 2022, Detective Eric Ortiz searched § 87(2)(b) in Brooklyn.

It is undisputed that Det. Ortiz entered and searched § 87(2)(b) in Brooklyn on August 11, 2022.

§ 87(2)(b) provided a statement to the CCRB on October 14, 2022 (Board Review 04). On the morning of August 11, 2022, § 87(2)(b) was in the process of getting her children ready for school when her apartment doorbell rang. § 87(2)(b) opened the apartment door and encountered officers identified as Sgt. Tiernan, Det. Ortiz, Det. Villegas, and Det. Solomito. Det. Ortiz showed § 87(2)(b) an “I-Card” and stated that they were looking for her son, § 87(2)(b). The I-Card did not have a photograph on it. § 87(2)(b) informed Det. Ortiz that § 87(2)(b) was not there and did not reside at the location. § 87(2)(b) did not say anything else regarding § 87(2)(b). Det. Ortiz informed § 87(2)(b) that her apartment was listed as § 87(2)(b) address. After approximately one to two minutes of similar exchange, Det. Ortiz pushed the front door open and entered, with

other officers following. § 87(2)(b) did not give any consent for officers to enter her apartment. The officers then entered and searched § 87(2)(b) bedroom, her daughter's room, and the bathroom before exiting the apartment.

The investigation received Det. Ortiz's DD5s for this incident, associated with Brooklyn North Warrants case § 87(2)(b) (Board Review 05). The subject of the investigation is § 87(2)(b). Det. Ortiz made an entry for an attempted apprehension for § 87(2)(b) on August 11, 2022 at 7:30 AM (Page 12). The summary of the investigation states that Det. Ortiz and other officers from the Brooklyn North Warrants Sections JAWS unit visited § 87(2)(b) § 87(2)(b) in Brooklyn and spoke to § 87(2)(b) stated that § 87(2)(b) was not present. She then provided consent for officers to search the apartment. According to the DD5, § 87(2)(b) became highly uncooperative and refused to answer questions regarding § 87(2)(b) whereabouts.

The investigation received probable cause I-Card § 87(2)(b) generated for § 87(2)(b) (Board Review 06, pages 2-4). The I-Card was generated on August 2, 2022, and active throughout the dates of the incidents in question. The I-Card also shows that an apprehension attempt was made at the incident location on August 11, 2022.

The investigation also received an arrest warrant for § 87(2)(b) (Board Review 06, pages 5-6). The warrant was issued § 87(2)(b) and listed § 87(2)(b) § 87(2)(b) in Brooklyn as § 87(2)(b) home address.

Det. Ortiz provided a statement to the CCRB on June 5, 2023 (Board Review 07) and a second statement on August 30, 2023 (Board Review 26). On August 11, 2023, Det. Ortiz visited the incident location regarding an open investigation assigned to him. The case involved subject § 87(2)(b) who was wanted at the time of the incident on an active probable cause I-Card. Det. Ortiz also identified an open arrest warrant for § 87(2)(b) for the same address. Det. Ortiz went to the incident location with other officers from his unit, but did not recall specifically who was with him. He was equally interested in apprehending § 87(2)(b) and § 87(2)(b).

When Det. Ortiz arrived at § 87(2)(b) building, he spoke with building security to inquire about § 87(2)(b) and § 87(2)(b). Det. Ortiz showed § 87(2)(b) photo to the security officer, who confirmed that § 87(2)(b) resided in § 87(2)(b) apartment. Det. Ortiz did not inquire about whether § 87(2)(b) was present at that time. He did not ask about § 87(2)(b) habits or movements that day. The security officer did not provide any additional information about § 87(2)(b) whereabouts. No other officer obtained any other information regarding § 87(2)(b) whereabouts at that time. Det. Ortiz did not interview neighbors or any other parties regarding § 87(2)(b) whereabouts. Det. Ortiz believed that § 87(2)(b) could have been present in § 87(2)(b) (b) apartment at that time because a security officers stated that § 87(2)(b) resided there, but there was no other reason why Det. Ortiz believed § 87(2)(b) to be present. Neither Det. Ortiz nor any other officer took any additional investigative step or made any other observation indicating that § 87(2)(b) was present within § 87(2)(b) apartment at that time.

Det. Ortiz then went to § 87(2)(b) apartment door and knocked. § 87(2)(b) answered. Det. Ortiz explained that he was looking for § 87(2)(b) and § 87(2)(b). Det. Ortiz showed § 87(2)(b) a paper copy of the arrest warrant for § 87(2)(b). He then requested entry into the apartment. § 87(2)(b) did not verbally provide consent, but instead fully opened the front door, stepped to the side, and waved her arm in a gesture to enter the apartment. Det. Ortiz interpreted these actions as consent to enter. Det. Ortiz did not prepare a consent to search report because

officers could have searched the apartment without consent due to the arrest warrant for § 87(2)(b) did not say if § 87(2)(b) was present at the time of the incident.

Once inside the apartment, Det. Ortiz searched the living room, § 87(2)(b) bedroom, and a second bedroom. Det. Ortiz only looked in places where a person could hide. The officers did not find § 87(2)(b) or § 87(2)(b) within the apartment.

Sgt. Tiernan's and Det. Villegas' statements were consistent with Det. Ortiz's statement regarding the entry and search (Board Review 08 and 09). Sgt. Tiernan added that officers could have entered the apartment without consent based on a two-pronged test for arrest warrants. The test required knowledge that the wanted individual lived at the location and reason to believe that the wanted individual was home at the time. Sgt. Tiernan believed the wanted individual was home because there were adult male shoes by the door and sounds of walking before the door opened. Sgt. Tiernan did not provide any other detail as to how the presence of the shoes or the sounds of walking within the apartment specifically indicated § 87(2)(b) presence. Det. Solomito, for his part, testified that he went to the rear of the building to watch the windows and did not have any knowledge of what occurred inside (Board Review 10).

According to *Payton v. New York*, 445 U.S. 573 (1980) (Board Review 14), officers may not, absent exigent circumstances or consent, enter a suspect's home to make a warrantless arrest. However, an arrest warrant founded on probable cause implicitly carries with it the limited authority to enter a dwelling in which the suspect lives when there is reason to believe the suspect is within.

According to New York State Criminal Procedure Law 120.80 (Board Review 15), a warrant of arrest may be executed on any day of the week and at any hour of the day or night. In order to effect an arrest, a police officer may enter any premises in which he reasonably believes the defendant to reside and to be present. Before such entry, an officer must give, or make reasonable effort to give, notice of his authority and purpose to an occupant thereof. If the officer is authorized to enter premises without giving notice of his authority and purpose, or if after giving such notice he is not admitted, he may enter such premises, and by breaking if necessary.

Per NYC Administrative Code 14-173 (Board Review 27), officers obtaining consent for a search must create a video or documentary record of such consent. Similarly, NYPD Operations Order 50 (from October 11, 2016) (Board Review 28) requires that, where feasible, officers have a consenting party sign a consent to search form.

The CCRB investigation confirmed that Det. Ortiz was armed with a valid, recently-issued arrest warrant for § 87(2)(b) and that the warrant bore § 87(2)(b) address. § 87(2)(g)

Det. Ortiz took no investigative steps to confirm that § 87(2)(b) was present within the apartment before he entered. Sgt. Tiernan offered that he saw adult male shoes near the door and heard footsteps within the apartment before the door opened, § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations A and B** be closed as **Substantiated**.

Allegation (C) Offensive Language: On August 11, 2022, an officer made remarks to § 87(2)(b) based upon race.

Allegation (D) Discourtesy: On August 11, 2022, an officer spoke discourteously to § 87(2)(b).

Allegation (E) Offensive Language: On August 11, 2022, an officer made remarks to § 87(2)(b) based upon the gender of § 87(2)(b).

According to § 87(2)(b) after the conclusion of the search on August 11, 2022, after officers exited the apartment, § 87(2)(b) said to the officers that she hoped they would die. One of the officers turned toward § 87(2)(b) and said, “Shut up, you black bitch.” § 87(2)(b) described this officer as a white male in plainclothes and wearing a vest (Board Review 04).

The investigation received negative results for any BWC video associated with this incident (Board Review 01). All officers stated that they were not equipped with BWCs because they were assigned to Warrants.

Det. Ortiz’s DD5s (Board Review 05) indicated that officers from the Brooklyn North Warrant Squad JAWS unit responded with him to the incident location. The Brooklyn North Warrants JAWS roll call (Board Review 05, pages 38 to 41) indicated that the JAWS team was comprised of Sgt. Tiernan, Det. Douglas Connolly, Det. Sean Nurse, Det. Ryan Olsen, Det. Ortiz, and Det. Solomito. However, the officers testified that Det. Connolly, Det. Nurse, and Det. Olsen were not present at the incident location during the incident on August 11, 2022 (Board Review 11, 12, and 13).

The investigation received members of service photographs for Sgt. Tiernan, Det. Ortiz, Det. Villegas, and Det. Solomito (Board Review 16 to 19). Sgt. Tiernan’s and Det. Solomito’s photograph profiles list them as white males. Det. Villegas and Det. Ortiz are listed as Hispanic males. However, all of these officers appear to be of relatively fair complexion.

Det. Ortiz stated during his CCRB interview that § 87(2)(b) yelled and used profanity toward the officers as they departed, but none of the officers responded to § 87(2)(b) made. No officer said, “Shut up, you black bitch” (Board Review 07). Sgt. Tiernan and Det. Villegas provided statements consistent with Det. Ortiz’s statement (Board Review 08 and 09). They both stated that they did not hear any officers make the statement, “Shut up, you black bitch.” Det. Solomito stated that he was outside of the building and did not have any knowledge of what occurred at the apartment (Board Review 10).

The description provided by § 87(2)(b) fits both Sgt. Tiernan and Det. Solomito, both of whom were present at the incident location. However, based on MOS photographs, the description could also reasonably suit Det. Villegas or Det. Ortiz. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations C, D, and E** be closed as **Officer Unidentified**.

Allegation (F) Abuse of Authority: On October 5, 2022, Detective Eric Ortiz damaged § 87(2)(b) property.

Allegation (G) Abuse of Authority: On October 5, 2022, Detective Eric Ortiz threatened to

notify Administration for Children's Services.

Allegation (H) Abuse of Authority: On October 5, 2022, Detective Eric Ortiz entered § 87(2)(b) in Brooklyn.

Allegation (I) Abuse of Authority: On October 5, 2022, Detective Eric Ortiz searched § 87(2)(b) in Brooklyn.

§ 87(2)(b) (Board Review 04) stated that on October 5, 2022, at approximately 8:55 AM, she was asleep within her apartment when she heard the doorbell ring. § 87(2)(b) approached the front door and saw Det. Ortiz, Det. Olsen, Det. Connolly, Det. Nurse, and additional officers. § 87(2)(b) did not open the door and returned to her bedroom to get dressed. As § 87(2)(b) dressed, she heard Det. Ortiz knocking loudly on the front door. § 87(2)(b) instructed her 10-year-old son, § 87(2)(b) to inform officers that she was not home. As soon as § 87(2)(b) did so, Det. Ortiz replied through the closed door that he knew § 87(2)(b) was home and instructed § 87(2)(b) to open the door. § 87(2)(b) did not open the door. § 87(2)(b) looked through the peephole and watched as Det. Ortiz began to kick the door. § 87(2)(b) later found that her front door was dented where Det. Ortiz kicked it. § 87(2)(b) repeated that § 87(2)(b) was not home and still did not open the door. Det. Ortiz then stated that he would contact the Administration for Children's Services (ACS). After Det. Ortiz threatened to contact ACS, § 87(2)(b) opened the front door to speak to the officers.

According to § 87(2)(b) when she opened the door, Det. Ortiz immediately pushed the door open and entered, with other officers following. § 87(2)(b) did not give consent for the officers to enter and explicitly informed them that she did not want them inside. Det. Ortiz informed § 87(2)(b) that he was looking for § 87(2)(b). § 87(2)(b) was familiar with § 87(2)(b) in that she and he had previously been engaged in a romantic relationship. Det. Ortiz stated that he had information that § 87(2)(b) lived in § 87(2)(b) apartment. Det. Ortiz and the other officers then searched the apartment for § 87(2)(b) including under beds and in closets in every room.

§ 87(2)(b) provided a cell phone video partially capturing the entry on October 5, 2023 (Board Review 03). The video does not show officers entering and does not capture the portion of the interaction when Det. Ortiz was alleged to have kicked the door or threatened to contact ACS but begins after officers are already inside of the apartment. Throughout the video, § 87(2)(b) speaks angrily to the officers and appears upset with them. § 87(2)(b) does not specifically tell the officers that she does not want them in her apartment or state that she did not provide consent. However, her demeanor is not consistent with having provided consent for officers to enter.

§ 87(2)(b) provided four images of her front door (Board Review 02). Image 1 and Image 2 show paint chipped from the exterior of the apartment door. Image 3 and Image 4 show paint chipping on the interior of the apartment door. The photos do not show any denting on the door.

As addressed above in the analysis of Allegations A and B, the investigation received both an I-Card for § 87(2)(b) and an arrest warrant for § 87(2)(b). The arrest warrant bore § 87(2)(b) address, § 87(2)(b).

Det. Ortiz's DD5s for Case # § 87(2)(b) pertaining to subject § 87(2)(b) include an entry regarding an apprehension attempt at § 87(2)(b) § 87(2)(b) in Brooklyn on October 5, 2022, at 8:40 AM (Board Review 05, Page 22). The investigation summary states that Det. Ortiz went to the location with officers from the Brooklyn North Warrants Section JAWS unit and spoke to § 87(2)(b) again in regard to wanted subject § 87(2)(b). § 87(2)(b) informed Det. Ortiz that § 87(2)(b) was not present and gave permission for officers to search. The search yielded

negative results. Again, according to the DD5, § 87(2)(b) became highly uncooperative and refused to answer any questions regarding the § 87(2)(b) whereabouts.

According to Det. Ortiz (Board Review 07 and 26), on October 5, 2022, he checked the NYPD database and saw that § 87(2)(b) arrest warrant was still active. He then went to § 87(2)(b) apartment to make a second apprehension attempt for both § 87(2)(b) and § 87(2)(b). Det. Ortiz brought with him a copy of the I-Card for § 87(2)(b) and the arrest warrant for § 87(2)(b).

Det. Ortiz stated that he believed both wanted individuals resided at the incident location. Prior to this apprehension attempt, Det. Ortiz did not speak with any neighbor or other civilian regarding § 87(2)(b) movements or habits. No officers conducted any surveillance or interviews regarding § 87(2)(b) whereabouts. No officers relayed any observation or other information to Det. Ortiz indicating that § 87(2)(b) was present in § 87(2)(b) apartment at the time of this apprehension attempt. Det. Ortiz did not speak with a security guard again on this date, as he had established on August 11, 2022, that § 87(2)(b) resided in § 87(2)(b) apartment. Det. Ortiz believed that there was a possibility that § 87(2)(b) was present within the apartment when he visited on October 5, 2022, but he did not have any specific basis for this belief.

According to Det. Ortiz, when he went to § 87(2)(b) apartment door and knocked, a young child's voice spoke from behind the door. Det. Ortiz explained that the police were at the door and that they needed to speak to § 87(2)(b). The child stated that § 87(2)(b) was his mother and that she was not home. Det. Ortiz instructed the child to contact § 87(2)(b) and tell her that the police were there and that she needed to come home so that she could allow officers to search the apartment. Det. Ortiz informed the child that officers would not leave until the child contacted § 87(2)(b). Det. Ortiz only knocked on the door. He did not kick the door, and no other officer kicked the door. Neither Det. Ortiz nor any other officer damaged the door in any manner. Neither Det. Ortiz nor any other officer informed the child that officers could or would contact ACS. After Det. Ortiz announced that officers would not leave, § 87(2)(b) shouted from inside of the apartment and opened the door. Det. Ortiz informed § 87(2)(b) that they were there because § 87(2)(b) arrest warrant was still active and that they had to check the apartment for him. Det. Ortiz showed § 87(2)(b) a copy of the warrant and verbally requested entry into the apartment. § 87(2)(b) did not provide verbal consent, but stepped to the side of the door and waved a hand into the apartment, § 87(2)(g).

§ 87(2)(b) Det. Ortiz and other officers then entered the apartment. Det. Ortiz searched within the living area, the kitchen, and § 87(2)(b) bedroom. Det. Ortiz only checked the rooms for areas where a person could hide. Neither § 87(2)(b) nor § 87(2)(b) was present, and the officers departed (Board Review 07).

Det. Connolly's, Det. Nurse's, and Det. Olsen's statements were consistent with Det. Ortiz's statement (Board Review 11, 12, 13). None of the officers recalled any officer damaging the apartment door or stating that officers could or could contact ACS.

§ 87(2)(g)
The images of the door provided by § 87(2)(b) do not clearly depict damage consistent with an officer kicking the door. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations F and G** be closed as **Unable to Determine**.

As addressed above, *Payton v. New York*, 445 U.S. 573 (1980) (Board Review 14) and New York State Criminal Procedure Law 120.80 (Board Review 15) authorize officers to enter a home with a valid arrest warrant bearing the home's address, but only where officers reasonably believe the wanted individual to be present at the time of the entry. Additionally, NYC Administrative Code 14-173 (Board Review 27) and NYPD Operations Order 50 (from October 11, 2016) (Board Review 28) require that when obtaining consent for a search, officers create a video or documentary record of such consent and that, where feasible, officers have a consenting party sign a consent to search form.

As above, in the analysis of Allegations A and B, the CCRB investigation confirmed that Det. Ortiz was armed with a valid, recently-issued arrest warrant for § 87(2)(b) and that the warrant bore § 87(2)(b) address. § 87(2)(g)

As on August 11, 2022, on October 5, 2022, Det. Ortiz took no investigative steps to confirm that § 87(2)(b) was present within the apartment before he entered. § 87(2)(g)

the tone of the interaction captured in § 87(2)(b) cell phone video does not reflect a consent search. § 87(2)(g)

it is recommended that **Allegations G and H** be closed as **Substantiated**.

Allegation (J) Abuse of Authority: On October 5, 2022, Detective Sean Nurse drew his gun.

Allegation (K) Abuse of Authority: On October 5, 2022, an officer drew their gun.

Allegation (L) Offensive Language: On October 5, 2022, an officer made remarks to § 87(2)(b)

based upon the gender of § 87(2)(b)

Allegation (M) Discourtesy: On October 5, 2022, an officer spoke discourteously to § 87(2)(b)

According to § 87(2)(b) while officers searched the apartment on October 5, 2022, as an officer identified as Det. Nurse and a second, unidentified officer entered a room within the apartment, both officers briefly drew their firearms. After the search, as the officers exited the apartment, § 87(2)(b) again told the officers that they should die. The same unidentified officer who had drawn a gun turned toward § 87(2)(b) and referred to her as a "bitch." § 87(2)(b) described the unidentified officer as a male dressed in plainclothes, wearing blue jeans and a blue jacket. § 87(2)(b) did not provide any apparent race or ethnicity (Board Review 04).

In the cellphone video provided by § 87(2)(b) (Board Review 03), which does not capture the entirety of the search, at the beginning of the video, Det. Ortiz and Det. Nurse are inside of § 87(2)(b) bedroom. Det. Nurse looks within a closet while § 87(2)(b) shouts at them. All officers then begin to exit after the search. No officer appears to have a gun drawn at any point. At 1 minutes 11 seconds, § 87(2)(b) stands at the doorway as officers walk away from her apartment, down the shared, public hallway. § 87(2)(b) tells the officers, "Go get killed." An officer turns to look at § 87(2)(b) asks the officer what he is looking at, and he responds, "Nothing, [indiscernible]." The audio quality is too poor to determine if the indiscernible phrase is the word "bitch." Multiple officers wear plainclothes (namely blue jeans and jackets). The video quality is too poor to clearly identify the officer who responded to § 87(2)(b)

Det. Nurse provided a statement to the CCRB on October 5, 2022 (Board Review 12). Det. Nurse stated that he never drew his firearm during the search and did not see any officer draw their firearm. Det. Nurse did not refer to § 87(2)(b) as a “bitch” nor hear any officer do so.

Det. Ortiz, Det. Connolly, and Det. Olsen all provided statements consistent with Det. Nurse’s statement (Board Review 7, 11, and 13). They each stated that they never drew a firearm and never heard any officer refer to § 87(2)(b) as a “bitch.” All of the officers confirmed that they were dressed in plainclothes.

Although the cellphone video does not show Det. Nurse or any other officer drawing a firearm during the search, the video does not capture the entirety of the search. § 87(2)(g)

It is therefore recommended that **Allegation J** be closed as **Unable to Determine**.

§ 87(2)(g) § 87(2)(b) was unable to provide a detailed description of the other officer who allegedly drew a firearm, and who allegedly referred to § 87(2)(b) as a “bitch”; because the quality of the cellphone video she provided is poor; and because multiple officers match the vague description that she provided, § 87(2)(g)

it is recommended that **Allegations K, L, and M** be closed as **Officer Unidentified**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
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- Det. Ortiz has been a member of service for 17 years and has been a subject 13 CCRB complaints and 23 allegations, of which two were substantiated:
 - 201303865 involved substantiated allegations of an entry and search of a premises against Det. Ortiz. The Board recommended charged and the NYPD imposed a forfeiture of eight vacation days.
 - 201412730 involved substantiated allegations of an entry and search of a premises against Det. Ortiz. The Board recommended charges and the NYPD imposed no penalty (not guilty).
 - § 87(2)(g)
- Det. Nurse has been a member of service for 22 years and has been a subject in four CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of August 18, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 24).

- § 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 12

Investigator:	<u>Shadman Khan</u>	<u>SI Shadman Khan</u>	<u>8/30/2023</u>
	Signature	Print Title & Name	Date

Squad Leader: Samuel Ross IM Samuel Ross 09/01/2023
Signature Print Title & Name Date

Reviewer: _____

Signature	Print Title & Name	Date
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